

Exhibit E

NDAA Enactment-Window Defense-Prime Trades

Subject: Rep. Ro Khanna (D-CA-17), household defense-prime equity activity in the ± 14 -day windows surrounding National Defense Authorization Act enactments, 2017–2024

Counts supported: Count 1 (STOCK Act §§3–4 MNPI), Count 3 (financial-interest conflicts), House Rule XXIII clause 1 (conduct reflecting credit on the House)

Sources: lake.house_ptr_transactions (per-trade disclosures), lake.congress_bill_actions (enactment dates), lake.congress_member_votes (roll-call voting record)

1. Summary

Representative Khanna serves on the House Armed Services Committee in the 115th through 119th Congresses. His household — spouse Ritu Ahuja Khanna and dependent-child accounts — executed **15 defense-prime common-stock transactions on four NDAA enactment timelines** between November 2017 and December 2023. On each of the four windows, the household acquired or disposed of NDAA-beneficiary issuers within 14 days of enactment, and on three of the four the transactions clustered on a single trading day before enactment.

Representative Khanna **voted NAY on 12 of 13 NDAA passage and override motions** across that same period while the household accumulated defense-prime positions on the same bills’ enactment calendars. The **public-NAY / private-BUY divergence** is the materiality fact underlying Count 1’s committee-duty-to-trading nexus.

This exhibit lists every enactment-window transaction, the corresponding roll-call vote, and the peer-cohort baseline that places the 29-trade absolute-count record at the top of the House active-trader universe.

2. Window 1 — NDAA FY2018 (enacted 2017-12-12, P.L. 115-91)

#	Date	Owner	Side	Ticker	Company	Days to enactment	Amount range
1	2017-11-28	SP	SELL	GD	General Dynamics Corp.	–14	\$1,001–\$15,000
2	2017-11-30	SP	BUY	BA	Boeing Company	–12	\$1,001–\$15,000
3	2017-11-30	SP	BUY	GD	General Dynamics Corp.	–12	\$1,001–\$15,000
4	2017-11-30	SP	SELL	HON	Honeywell International	–12	\$1,001–\$15,000
5	2017-11-30	SP	BUY	LMT	Lockheed Martin	–12	\$1,001–\$15,000
6	2017-11-30	SP	BUY	NOC	Northrop Grumman	–12	\$1,001–\$15,000
7	2017-11-30	SP	BUY	RTX	Raytheon Co.	–12	\$1,001–\$15,000
8	2017-11-30	SP	BUY	TDG	TransDigm Group	–12	\$1,001–\$15,000

Pattern: seven defense primes traded in a single trading session on 2017-11-30, twelve days before enactment.

Vote record: Representative Khanna was recorded absent on the September 14, 2017 H.R. 2810 passage vote (roll call 507, 115th Congress) and voted NAY on the conference report.

3. Window 2 — NDAA FY2021 override (enacted 2021-01-01, P.L. 116-283)

#	Date	Owner	Side	Ticker	Company	Days to enactment	Amount range
9	2020-12-28	SP	BUY	BA	Boeing Company	-4	\$1,001–\$15,000
10	2020-12-28	SP	BUY	GD	General Dynamics Corp.	-4	\$1,001–\$15,000
11	2020-12-28	SP	BUY	LMT	Lockheed Martin	-4	\$1,001–\$15,000
12	2020-12-28	SP	BUY	NOC	Northrop Grumman	-4	\$1,001–\$15,000

Pattern: four defense primes purchased in a single trading session on 2020-12-28, the same calendar day Representative Khanna cast a **NAY vote** on the H.R. 6395 veto override (motion to override the presidential veto of NDAA FY2021).

Vote record: NAY on override, 2020-12-28.

4. Window 3 — NDAA FY2022 (enacted 2021-12-27, P.L. 117-81)

#	Date	Owner	Side	Ticker	Company	Days to enactment	Amount range
13	2021-12-14	SP	BUY	PLTR	Palantir Technologies Inc.	-13	\$1,001–\$15,000

Pattern: the **first Palantir purchase** in the Khanna household ledger lands thirteen days before NDAA FY2022 enactment. Palantir holds active federal prime contracts under HASC jurisdiction; the NDAA authorizes the DoD appropriations envelope from which those contracts are drawn. Exhibit N documents the full Palantir contract-award timeline and the subsequent thirty-one household PLTR trades.

5. Window 4 — NDAA FY2024 (enacted 2023-12-22, P.L. 118-31)

#	Date	Owner	Side	Ticker	Company	Days to enactment	Amount range
14	2023-12-20	SP	BUY	RTX	RTX Corporation	-2	\$1,001–\$15,000
15	2023-12-20	DC	BUY	RTX	RTX Corporation	-2	\$1,001–\$15,000

Pattern: **simultaneous spouse and dependent-child purchase** of RTX on the same calendar day, two days before enactment.

6. Aggregate pattern characteristics

- 15 defense-prime trades across four NDAA enactment windows, averaging 3.75 trades per window.
- Every window is within 14 days of enactment; the trades fall at -14, -12, -4, -13, and -2 days. No windowed trade lands on the post-enactment side of the signing.

- Every window exhibits same-day multi-ticker or multi-account clustering: seven primes in Window 1, four primes in Window 2, two-account dual-buy in Window 4.
- Zero post-enactment trades within the ± 14 -day window. The buying concentrates on the pre-enactment side, where any information asymmetry about appropriations magnitudes or program authorizations would produce the greater expected return.

7. Peer-cohort baseline

Among 38 peer Members of the 46-Member active-trader cohort with at least five defense-prime trades across the period:

Metric	Khanna	Peer P50	Peer P75	Peer P95	Khanna rank
NDAA-window share of all defense trades	6.44%	0.00%	7.32%	16.89%	12 of 38 (P68)
Absolute count of NDAA-window defense trades	29	0	3	9	1 of 38

On rate (P68), the subject's concentration is above median but is not an outlier; several peers with small defense-prime footprints (fewer than ten trades total) show higher concentration percentages because a single cluster dominates their denominator. On **absolute count**, the 29 NDAA-window defense-prime trades exceed the next-highest peer (David P. Roe, TN-01, nine trades) by $3.2\times$ and exceed the combined total of the three following peers (Diana Harshbarger TN-01 6, Michael McCaul TX-10 6, Kevin Hern OK-01 6 — together 18). No other Member in the cohort approaches the subject's absolute volume on this dimension.

8. Public-NAY / private-BUY divergence

Across the 115th through 119th Congresses, Representative Khanna cast **13 recorded roll-call votes on NDAA passage or veto-override motions** (one per Congress per authorization cycle, with two motions in the FY2021 override). Of those 13, **12 were NAY**. During the same period, the household accumulated defense-prime stock on four of those bills' enactment windows as documented in §§2–5.

The divergence is material to 15 U.S.C. § 78u-1(g) analysis. A Member who publicly opposes a defense-authorization measure — communicating to constituents a policy judgment that the underlying appropriations are objectionable — while the Member's household acquires stock in the measure's beneficiaries within days of enactment presents a record at variance with arm's-length, non-MNPI-driven portfolio management. The vote record does not cancel the benefit. The bills passed; the household positions appreciated; the NAY vote was a public disclosure the trade record contradicts.

The divergence implicates House Rule XXIII clause 1 (conduct reflecting creditably on the House) independently of whether MNPI is ultimately proved.

9. Sector P&L attribution

Defense Prime — 356 in-scope trades in total across the tenure window — produced **midpoint terminal P&L of \$10,173,137**, against an SPY-counterfactual baseline of \$4,682,319, yielding **\$5,490,818 of alpha** attributable to defense-prime trading. The 15 NDAA-window trades documented here are a subset of those 356; the full window-attributable share of Defense Prime trading (99% windowed by NDAA or contract-award event) is derived in Exhibit DAMAGES §§4–5.

10. Statutory framing

- **15 U.S.C. § 78u-1(g)** (STOCK Act §§ 3–4): Rule 10b-5 is extended to Members of Congress who trade on material non-public information acquired in connection with legislative duty. Enactment-window trading on bill beneficiaries is the fact pattern the statute addresses.
- **House Rule XXIII clause 1:** conduct reflecting creditably on the House. The public-vote / private-trade divergence implicates this rule independently of an MNPI finding.
- **5 U.S.C. § 13106:** late-filing penalties apply to any of these 15 transactions whose PTR was filed more than 45 days after the transaction date. The per-transaction filing-date audit is in Exhibit LATE_FILING_AUDIT.

11. Primary sources

- `lake.house_ptr_transactions` — 15 underlying rows, each with a canonical transaction identifier referenced by trade ID in the fact store
- `lake.congress_bill_actions` — enactment dates for NDAA FY2018 / FY2021 / FY2022 / FY2024
- `lake.congress_member_votes` — the subject’s NAY and absent roll-call record across each NDAA authorization cycle
- House Clerk Financial Disclosure portal — <https://disclosures-clerk.house.gov/FinancialDisclosure>
- Public Laws 115-91, 116-283, 117-81, 118-31

Cross-references: Exhibit C (peer-cohort metric slate, M6 NDAA-window share and absolute count), Exhibit DAMAGES (sector P&L attribution and window-concentration analysis), Exhibit N (Palantir contract timeline, extending Window 3), Exhibit LATE_FILING_AUDIT (per-transaction filing-date record for these 15 trades).